

Subject: Final Notice – Continuing Non-Compliance with Equality Act 2010 and FPR Part 3A (CA-2024-001342 / BV20D01752)

Date: Friday, October 31, 2025 at 3:12:07 AM Mountain Daylight Time

From: Nadia <nadia@rosekross.com>

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Priority: High

Attachments: Stage 3_Escalation Bundle_31Oct2025.pdf

Dear Sir or Madam,

Please find attached my **Final Notice of Continuing Non-Compliance** and **Stage 3 Escalation Submission** concerning systemic failures by **HMCTS** and the **Ministry of Justice** to uphold equality and participation duties under **FPR Part 3A, the Equality Act 2010, and Article 6 ECHR**.

This submission consolidates my correspondence of 20 - 31 October 2025, including four written deflections received from **HMCTS** and the **Court of Appeal** that collectively demonstrate a continuing administrative and accessibility failure.

Despite repeated submissions clearly identifying breaches of the **Equality Act 2010, Family Procedure Rules Part 3A, and Article 6 ECHR**, the matter continues to be misclassified as either a judicial issue or a customer-service query. This repeated deflection represents a continuing administrative and statutory breach of the Public Sector Equality Duty and the **procedural safeguards owed to disabled and vulnerable court users**.

The evidence shows that:

1. My **autism and PTSD** were acknowledged by the court, and **Part 3A measures** were implemented during trial;
2. Those measures were **unlawfully revoked** post-trial without notice, hearing, or review;
3. Disability-related behaviours were **mischaracterised** as bad conduct in the judgments of 18 April 2024 and 24 May 2024; and
4. Repeated requests for assistance were ignored, leaving no route for enforcement or redress.

This matter concerns **administrative accountability**, not judicial discretion. **Both the MoJ and HMCTS have statutory responsibilities under the Public Sector Equality Duty (s. 149 Equality Act 2010) to ensure accessible justice for disabled and neurodivergent individuals.**

As **Tom Purser, CEO of Autism Action**, recently observed in his June 2025 evidence to the **House of Lords Autism Act 2009 Committee**:

“Crucially, we have seen that the Act has not proven to be enforceable at any level — from individuals to ministers — and no person or agency has been made accountable for its delivery or, critically, its failure.”

My case exemplifies precisely this enforcement gap. I therefore request that:

1. This submission be reviewed at **Permanent-Secretary** level and logged for institutional accountability;
2. The **Equality and Human Rights Commission and Parliamentary & Health Service Ombudsman** oversee the matter under the Public Sector Equality Duty; and
3. A substantive written reply be issued within **seven days**, confirming corrective and preventative measures.

This email and the attached Notice formally place both departments on record. If no substantive reply is received within **seven (7) days**, I will proceed to file for **Judicial Review** and refer the matter to the **Equality and Human Rights Commission and the Parliamentary & Health Service Ombudsman**.

Please acknowledge receipt within 48 hours and confirm escalation to the Permanent Secretary's office.

Yours sincerely,

Nadia Zahmoul

Email: nadia@rosekross.com

Attachments:

Stage 3 Escalation Letter (30 October 2025)

Final Notice and Continuing Deflection (Exhibit NZ-U) (31 October 2025)

Annex B: Misclassification Background Note (30 October 2025)

Court of Appeal Correspondence (Exhibit NZ-T, 29 October 2025)

Stage 2 Escalation Letter (29 October 2025)

Pre-Action Protocol Letter + Annex A (20 October 2025)

Follow-Up Pre-Action Letter (21 October 2025)

Urgent Escalation Letter (28 October 2025)

Letter to Autism Act 2009 Committee (24 October 2025)

Deflection Exhibits (NZ-U1 – NZ-U4)